

Senate File 644

H-1348

1 Amend Senate File 644, as amended, passed, and reprinted by  
2 the Senate, as follows:

3 1. Page 22, after line 13 by inserting:

4 <DIVISION \_\_\_\_  
5 SEARCH AND SEIZURE

6 Sec. \_\_\_\_\_. Section 808.1, Code 2025, is amended by adding the  
7 following new subsections:

8 NEW SUBSECTION. 1A. "*Compulsory process*" means any court  
9 order, including a search warrant, a subpoena or administrative  
10 subpoena, or any other legal process seeking to compel the  
11 disclosure of records or information.

12 NEW SUBSECTION. 3A. "*Geofence search action*" means any  
13 action by a law enforcement agency using technology to create  
14 a virtual geographic boundary to monitor the geolocation  
15 activity of an individual or to compel a third party to produce  
16 information about devices interacting with the third party's  
17 technology within the virtual geographic boundary. "*Geofence*  
18 *search action*" includes any compulsory process seeking such  
19 records or information and any action seeking to obtain such  
20 records or information in exchange for valuable consideration.

21 Sec. \_\_\_\_\_. NEW SECTION. 808.4B **Geofence search action**  
22 **prohibited.**

23 1. A law enforcement agency shall not conduct a geofence  
24 search action for a person in the area of the capitol complex  
25 prior to a compulsory process approving such action.

26 2. A violation of this section shall result in the dismissal  
27 from law enforcement employment of any law enforcement officer  
28 involved in the violation. The law enforcement agency shall  
29 refer a violation of this section to the attorney general. The  
30 attorney general may, upon referral, file an action in district  
31 court seeking the assessment of a one hundred thousand dollar  
32 civil penalty against the law enforcement officer.

33 3. Civil penalties collected for a violation of this section  
34 shall be deposited in the general fund of the state.>

35 2. Title page, line 4, by striking <and a corrections

1 federal receipts fund> and inserting <a corrections federal  
2 receipts fund, and search and seizure>  
3 3. By renumbering as necessary.

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JONES of Clay